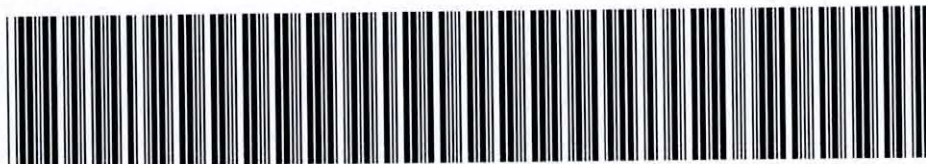


POSTED

DIO7-044

EWR D&I ANNOTATION

FAN-000001L064001DP103-6474

Artemis # : 000001L064001DP103**Record Created Date :** 07/26/2007**Printed Date :** 08/01/2007**Description :**

THE DRIVER OF THE SUBJECT VEHICLE WAS TRAVELING NORTHBOUND ON AN INTERSTATE HIGHWAY. FOR UNKNOWN REASONS, THE VEHICLE VEERED ONTO THE GRAVEL PORTION OF THE MEDIAN AND CRASHED. THE POLICE REPORT INDICATES THAT THE VEHICLE ROLLED OVER. THE POLICE ALSO SAY THE DRIVER WAS WEARING HIS SEAT BELT, HOWEVER, HE SUFFERED FATAL INJURIES. THE POLICE INDICATED THAT THE DRIVER WAS IN VIOLATION OF AN UNSAFE TURNING MOVEMENT. THE SUBJECT VEHICLE MANUFACTURER DID NOT SUBMIT AN ASSESSMENT OF THIS CRASH EVENT.

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Ave., S.E.
Washington, D.C. 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

MAY - 7 2007

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-044

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 4th quarter of 2006. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 30, 40, 88, 91, 103, 116, 135, 137, 140, 155, 221, 244, 246, 256, 257, 273, 274, 285, 295, 345, 360, 368, 401, 424, 436, 439	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the table above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

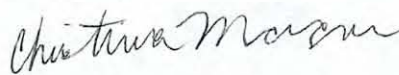
This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **June 8, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement

**GENERAL MOTORS NORTH AMERICA**
Structure & Safety Integration

June 7, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
400 Seventh Street, S.W.
Washington, DC 20590

NVS-217ph
DI07-044

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated May 7, 2007 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from 4th quarter of 2006.

GM's response is comprised of 29 CDs for the incidents that are the subject of DI07-044.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 256 210873110 - 625130 and 2004 Chevrolet Suburban 1500. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 256 210873110 - 625130 **_00_Request and Responses**. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the CD are as follows:

DI07-044
256 210873110 - 625130
2004 CHEVROLET SUBURBAN 1500

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

- 256 210873110 - 625130 **_01_1** - is the first document responsive to Inquiry no. 1.
256 210873110 - 625130 **_02_1** - is the first document responsive to Inquiry no. 2.

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-044 Response.doc



Letter to Ms. Christina Morgan
 DI07-044 Response
 June 7, 2007
 Page 2 of 5

Your inquiries and our corresponding replies are as follows:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

The table below lists the incidents that are the subject of DI07-044, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(26 Vehicles from the Light Vehicle Template)			
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)		TYPE
✓ 30	1G6DP577770		NISM
✓ 40	1G6KD54Y05U		NISM
✓ 88	1G1AK52F657		RUMOR
✓ 91	1G1AK52F957		RUMOR
✓ 103	1G1AL15F877		NISM
✓ 116	1GNFG15T851		LIT
✓ 135	2G1WH52K349		NISM
✓ 137	2G1WH52K249		NISM
✓ 140	2G1WF52E159		LIT
✓ 155	1G1ND52J83M		NISM
✓ 221	2GCEC19T041		LIT
✓ 244	1GCHK29U23E		LIT
✓ 246	1GCHK23225F		LIT
✓ 256	1GNFK16T74J		LIT
✓ 257	3GNFK16T64G		RUMOR
✓ 273	1GNEC13V74J		LIT
✓ 274	1GNEC13TX5R		LIT
✓ 285	1GNDS13S822		LIT
✓ 295	1GNDT13S542		RUMOR
✓ 345	1GTEC14T74Z		LIT
✓ 360	1GKEC16Z14R		LIT
✓ 368	5GTDN136468		RUMOR
✓ 401	1G2ZG58B574		NISM
✓ 424	2G2WP552661		RUMOR
✓ 436	1G8AJ52F14Z		LIT
✓ 439	1G8AJ55F96Z		NISM

Letter to Ms. Christina Morgan
DI07-044 Response
June 7, 2007
Page 3 of 5

2. Provide a copy of the Police Accident Report.

Response: See Attached Documents.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

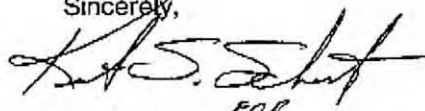
To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,



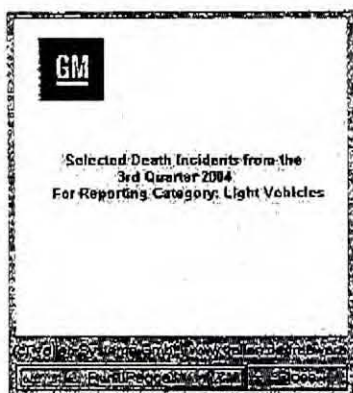
Gay P. Kent ^{FOR}
Director
Product Investigations

Enclosures: 29 Discs
Attachment A

Letter to Ms. Christina Morgan
 DI07-044 Response
 June 7, 2007
 Page 4 of 5

Attachment A Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.

Step 5 Select Page Icon

Name	Size	Date	Time	Location
335 6258861-4667...	507 KB	4/23/2004	5:23 PM	D:\Images
335 6258861-4667...	420 KB	4/23/2004	5:23 PM	D:\Images
335 6258861-4667...	1.0 MB	4/23/2004	5:25 PM	D:\Images
335 6258861-4667...	0.5 MB	4/23/2004	5:04 PM	D:\Images
335 6258861-4667...	714 KB	4/23/2004	6:03 PM	D:\Images
335 6258861-4667...	417 KB	4/23/2004	7:13 PM	D:\Images
335 6258861-4667...	9.1 MB	4/23/2004	6:09 PM	D:\Images
335 6258861-4667...	9.8 MB	4/23/2004	6:14 PM	D:\Images
335 6258861-4667...	530 KB	4/23/2004	6:16 PM	D:\Images
335 6258861-4667...	420 KB	4/23/2004	6:17 PM	D:\Images
335 6258861-4667...	1.0 MB	4/23/2004	6:21 PM	D:\Images
335 6258861-4667...	11.5 MB	4/23/2004	6:25 PM	D:\Images
335 6258861-4667...	050 KB	4/23/2004	6:31 PM	D:\Images
335 6258861-4667...	414 KB	4/23/2004	6:33 PM	D:\Images
335 6258861-4667...	1.0 MB	4/23/2004	6:35 PM	D:\Images
335 6258861-4667...	10.1 MB	4/23/2004	6:39 PM	D:\Images
335 6258861-4667...	0.6 MB	4/23/2004	6:43 PM	D:\Images
335 6258861-4667...	0.4 MB	4/23/2004	7:10 PM	D:\Images
335 6258861-4667...	702 KB	4/23/2004	7:13 PM	D:\Images
335 6258861-4667...	495 KB	4/23/2004	7:17 PM	D:\Images
335 6258861-4667...	1.1 MB	4/23/2004	7:18 PM	D:\Images
335 6258861-4667...	4.9 MB	4/23/2004	7:23 PM	D:\Images
335 6258861-4667...	528 KB	4/23/2004	7:25 PM	D:\Images
335 6258861-4667...	2.7 MB	4/23/2004	7:26 PM	D:\Images
335 6258861-4667...	739 KB	4/23/2004	7:27 PM	D:\Images
335 6258861-4667...	421 KB	4/23/2004	7:29 PM	D:\Images
335 6258861-4667...	1.3 MB	4/23/2004	7:29 PM	D:\Images
335 6258861-4667...	746 KB	4/23/2004	7:38 PM	D:\Images
335 6258861-4667...	441 KB	4/23/2004	7:39 PM	D:\Images
335 6258861-4667...	1.2 MB	4/23/2004	7:40 PM	D:\Images

Request for Information:

1. Provide a copy of the claim or notice that outlined General Motors of the incident, including any amendments and supplementary theories, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damage.
 Response: See Attached Documents
2. Provide a copy of all documents received from the claimant(s) or the claimant's representative that identify and/or support or purport to support any allegation of a defect in the vehicle, regardless of whether the General Motors disputes the allegations therein.
 Response: See Attached Documents
3. Provide a copy of all investigative documents prepared by any local, state or Federal governmental agency or personnel related to the incident, including but not limited to police accident report(s).
 Response: See Attached Documents
4. Provide a copy of all diagrams and drawings that relate to the incident, including post-incident reconstruction.
 Response: See #3
5. Provide a copy of all documents, photographs or videos that relate to the incident, or the vehicles involved in the incident, including materials related to the progression, cause, or rehabilitation of any injury.
 Response: See Attached Photographs and Attached Documents

Step 4 Image List

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
 DI07-044 Response.doc



Letter to Ms. Christina Morgan
DI07-044 Response
June 7, 2007
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- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

(NAME OF PARTY REQUESTING COPIES) (NAME OF COURT AND ADDRESS) ERIC D. FARIS, Esq., 3/89 17836 LAW OFFICES OF ERIC D. FARIS & ASSOCIATES 201 D. THOMAS STREET SUITE 403 ROSELIA, CALIFORNIA 91766 Telephone: 909-449-5127 FAX: 909-462-3126 TELETYPE: 909-449-5127		(FILE NO.) 88-2709(1) FILED COPY CASE ONLY
(JURISDICTION) (COUNTY) (COURT) SAN JUAN COUNTY SUPERIOR COURT FOR THE STATE OF CALIFORNIA 1820 COURT		CASE NUMBER: CIVIL CASE COVER SHEET ☐ Unfiled ☒ Unfiled
CASE NAME: CARDONA V. CHEVROLET		
Complete Case Designation ☐ Consumer ☐ Juvenile Filed with first appearance by defendant (CAL. Rules of Court, rules 181.1)		
Please complete one of the following below:		
1. Check one box below for the case type that best describes this case: ☒ Auto (22) ☐ Other Personal Injury/Property Damage/Uninsured/Underinsured ☐ Products (24) ☐ Medical Malpractice (25) ☐ Other Personal Injury (26) ☐ Insurance (27) ☐ Breach of contract/Real estate (28) ☐ Child support, Alimony, Distribution, etc. (29) ☐ Defamation (30), libel, slander, etc. (31) ☐ Fraud (32) ☐ Intellectual Property (33) ☐ Professional Negligence (e.g., legal malpractice) (34) ☐ Other Non-Personal Injury (35) ☐ Other (36)		
2. This case ☒ is ☐ is not complete under rule 1800 of the California Rules regarding nonpersonal injury management: a. ☒ Large number of potentially responsible parties ☐ Large number of ☒ California statute providing liability or mutual issues that will be determined by summary judgment ☐ California statute providing liability or mutual issues that will be determined by summary judgment b. ☒ Substantial amount of documentary evidence ☐ Other (37) 3. Type of intervention sought (check all that apply): ☒ Summary ☐ Preliminary, declaratory or injunctive relief 4. Number of claims of injury/damage: FIVE 5. This case ☐ is ☒ is not a class action suit. Date: JULY 3, 2003 ERIC D. FARIS, Esq., 3/88 17836, ... (PRINT NAME AND ADDRESS)		
NOTICE Plaintiff must file this cover sheet with the first papers filed in the action or proceeding (as cover the Plaintiff, Family, or Victim and the Defendant, CAL. Rules of Court, rule 1800.1). If this cover sheet is in addition to any cover sheet (required by local court rule). If this sheet is complete under rule 1800 of the California Rules of Court, you may file other papers to the action or proceeding. Unless this is a summary case, this cover sheet must be served for statistical purposes, and		
CIVIL CASE COVER SHEET		

Step 7 Image Properties

Step 7 Next File (Image)

Step 7 Next page

Step 8 Scale Image

Step 7 Image Properties

DI07-044
103 210872471 – 516681
2007 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

New Set 6/6p

Cm D

**Alamo**

Vanguard Car Rental USA Inc.

Fax**To:** Diane ESIS Claims**From:** Kelly Mayfield**Fax:** 313-665-0911**Pages:** Including cover**Phone:** 918-401-6817**Date:** 10/9/2006**Re:** Claim 000851215**CC:** FILE☐ **Urgent** ☐ **For Review** ☐ **Please Comment** ☐ **Please Reply** ☐ **Please Recycle**

● Diane,

Vanguard Car Rental is the third party claims administrator for National and Alamo Car Rental Companies. On 09/21/2006 a 2007 Chevy Cobalt VIN#1G1AL15F87 [REDACTED] was involved in a single vehicle rollover accident that resulted in a fatality of the driver. There were no other occupants of the vehicle. The proximate cause of the accident is unknown. We have requested a police report however, to date we have not received it. The vehicle has been placed on hold and secured since the date of the accident. Due to the serious nature of this accident we feel that it is imperative that you open a claim and inspect this vehicle for possible defects that may have contributed to this accident. I would like the black box in the vehicle pulled and downloaded. It is my understanding you have contacts who can perform this task. Please advise me at your earliest convenience the adjuster assigned to this file, claim number and contact information. Thank you for your time.

Sincerely,

Kelly Mayfield
Senior Claims Adjuster-Western United States Team
Vanguard Car Rental
P.O. Box 22299
Tulsa, OK 74121-2299
Direct Dial: 918-401-6817
Fax: 952-841-2750

STATE OF CALIFORNIA

TRAFFIC COLLISION REPORT

CHP 555 CARS Page 1 (Rev 1-03) OPI 061

ORIGINAL

Page 1 of 14

SPECIAL CONDITIONS FATAL		NUMBER 0	MT & RLA FELONY	CITY UNINCORPORATED	JUDICIAL DISTRICT BARSTOW	LOCAL REPORT NUMBER 2006-09-0100	
NUMBER RELEASING 1		MT & RLA MISDEMEANOR	COUNTY SAN BERNARDINO	REPORTING DISTRICT 77			
LOCATION	COLLISION OCCURRED ON: I-15 N/B			MO 9/20/2006	DAY 1344	YEAR 2006	TIME (2400)
	MILEPOST INFORMATION 92 FEET SOUTH OF I-5-SBD-180.00			DAY OF WEEK WEDNESDAY	TOW AWAY ☒ YES ☐ NO		PHOTOGRAPHS BY: J. MORAN
	AT INTERSECTION WITH: ☒ OR: 1.41 MILE(S) SOUTH OF YATES WELL RD			STATE MAY REL ☒ YES ☐ NO		16883	
						3 ROLLS	
PARTY 1	DRIVER'S LICENSE NUMBER	STATE OR	CLASS F	AIR BAG M	SAFETY EQUIP. G	VEH. YEAR 2007	MAKE / MODEL / COLOR CHEV COBALT ORG
DRIVER	NAME (FIRST, MIDDLE, LAST)			OWNER'S NAME ☐ SAME AS DRIVER			
PEDESTRIAN	STREET ADDRESS			OWNER'S ADDRESS ☐ SAME AS DRIVER			
PARKED VEHICLE	CITY / STATE / ZIP PORTLAND OR			DISPOSITION OF VEHICLE ON ORDERS OF: ☒ OFFICER ☐ DRIVER ☐ OTHER			
BICYCLIST	SEX M	HAIR GRY	EYES BRN	HEIGHT 5-10	WEIGHT 250	BIRTHDATE Mo Day Year	RACE W
OTHER	HOME PHONE UNKNOWN			BUSINESS PHONE UNKNOWN			
	INSURANCE CARRIER RENTAL			POLICY NUMBER			
	DIR OF TRAVEL N	ON STREET OR HIGHWAY I-15			SPEED LIMIT 70		
PARTY 2	DRIVER'S LICENSE NUMBER	STATE	CLASS	AIR BAG	SAFETY EQUIP.	VEH. YEAR	MAKE / MODEL / COLOR
DRIVER	NAME (FIRST, MIDDLE, LAST)			OWNER'S NAME ☐ SAME AS DRIVER			
PEDESTRIAN	STREET ADDRESS			OWNER'S ADDRESS ☐ SAME AS DRIVER			
PARKED VEHICLE	CITY / STATE / ZIP			DISPOSITION OF VEHICLE ON ORDERS OF: ☐ OFFICER ☐ DRIVER ☐ OTHER			
BICYCLIST	SEX	HAIR	EYES	HEIGHT	WEIGHT	BIRTHDATE	RACE
OTHER	HOME PHONE			BUSINESS PHONE			
	INSURANCE CARRIER			POLICY NUMBER			
	DIR OF TRAVEL	ON STREET OR HIGHWAY			SPEED LIMIT		
PARTY 3	DRIVER'S LICENSE NUMBER	STATE	CLASS	AIR BAG	SAFETY EQUIP.	VEH. YEAR	MAKE / MODEL / COLOR
DRIVER	NAME (FIRST, MIDDLE, LAST)			OWNER'S NAME ☐ SAME AS DRIVER			
PEDESTRIAN	STREET ADDRESS			OWNER'S ADDRESS ☐ SAME AS DRIVER			
PARKED VEHICLE	CITY / STATE / ZIP			DISPOSITION OF VEHICLE ON ORDERS OF: ☐ OFFICER ☐ DRIVER ☐ OTHER			
BICYCLIST	SEX	HAIR	EYES	HEIGHT	WEIGHT	BIRTHDATE	RACE
OTHER	HOME PHONE			BUSINESS PHONE			
	INSURANCE CARRIER			POLICY NUMBER			
	DIR OF TRAVEL	ON STREET OR HIGHWAY			SPEED LIMIT		
PREPARED BY J MORAN 16883				DISPATCH NOTIFIED ☒ YES ☐ NO ☐ NA		REVIEWER'S NAME JW	
						DATE REVIEWED 10-5-06	

1SGT PEILT NM TCAPT

CHP 555 CARS Page2 (Rev. 1-03) OPI 061

Page 2 of 4

TA000092918

STATE OF CALIFORNIA

INJURED / WITNESSES / PASSENGERS

CHP 555 CARS Page 3 (Rev 1-03) OPI 061

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DATE OF COLLISION (MO. DAY YEAR)		TIME(2400)		NCIC #		OFFICER I.D.		NUMBER											
9/20/2006		1344		9835		16883		2006-09-0100											
WITNESS ONLY	PASSENGER ONLY	AGE	SEX	EXTENT OF INJURY('X' ONE)				INJURED WAS ('X' ONE)					PARTY NUMBER	SEAT POS.	AIR BAG	SAFETY EQUIP.	EJECTED		
				FATAL INJURY	SEVERE INJURY	OTHER VISIBLE INJURY	COMPLAINT OF PAIN	DRIVER	PASS.	PED.	BICYCLIST	OTHER							
☐	☐	70	M	☒	☐	☐	☐	☒	☐	☐	☐	☐	☐	1	1	M	G	0	
NAME / D.O.B. / ADDRESS										TELEPHONE									
PORTLAND OR										UNKNOWN									
(INJURED ONLY) TRANSPORTED BY:										TAKEN TO:									
SAN BERNARDINO COUNTY CORONER										SAN BERNARDINO COUNTY MORGUE									
DESCRIBE INJURIES: POSSIBLE SKULL FRACTURE, LACERATION TO LEFT ARM, BLUNT FORCE TRAUMA.																			
PROMOUNCED DECEASED AT 1357 HOURS BY PARAMEDIC J. WEI.CH P50085, PRIMM AMR. CORONER J. KROEGER, CORONER CASE #06-3720JK																			
☐ VICTIM OF VIOLENT CRIME NOTIFIED																			
☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	
NAME / D.O.B. / ADDRESS										TELEPHONE									
(INJURED ONLY) TRANSPORTED BY:										TAKEN TO:									
DESCRIBE INJURIES:																			
☐ VICTIM OF VIOLENT CRIME NOTIFIED																			
☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	
NAME / D.O.B. / ADDRESS										TELEPHONE									
(INJURED ONLY) TRANSPORTED BY:										TAKEN TO:									
DESCRIBE INJURIES:																			
☐ VICTIM OF VIOLENT CRIME NOTIFIED																			
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NAME / D.O.B. / ADDRESS										TELEPHONE									
(INJURED ONLY) TRANSPORTED BY:										TAKEN TO:									
DESCRIBE INJURIES:																			
☐ VICTIM OF VIOLENT CRIME NOTIFIED																			
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NAME / D.O.B. / ADDRESS										TELEPHONE									
(INJURED ONLY) TRANSPORTED BY:										TAKEN TO:									
DESCRIBE INJURIES:																			
☐ VICTIM OF VIOLENT CRIME NOTIFIED																			
☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	
NAME / D.O.B. / ADDRESS										TELEPHONE									
(INJURED ONLY) TRANSPORTED BY:										TAKEN TO:									
DESCRIBE INJURIES:																			
☐ VICTIM OF VIOLENT CRIME NOTIFIED																			
PREPARER'S NAME										ID. NUMBER		MO. DAY YEAR		REVIEWER'S NAME				MO. DAY YEAR	
J. MORAN										16883		9/20/2006							

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STATE OF CALIFORNIA

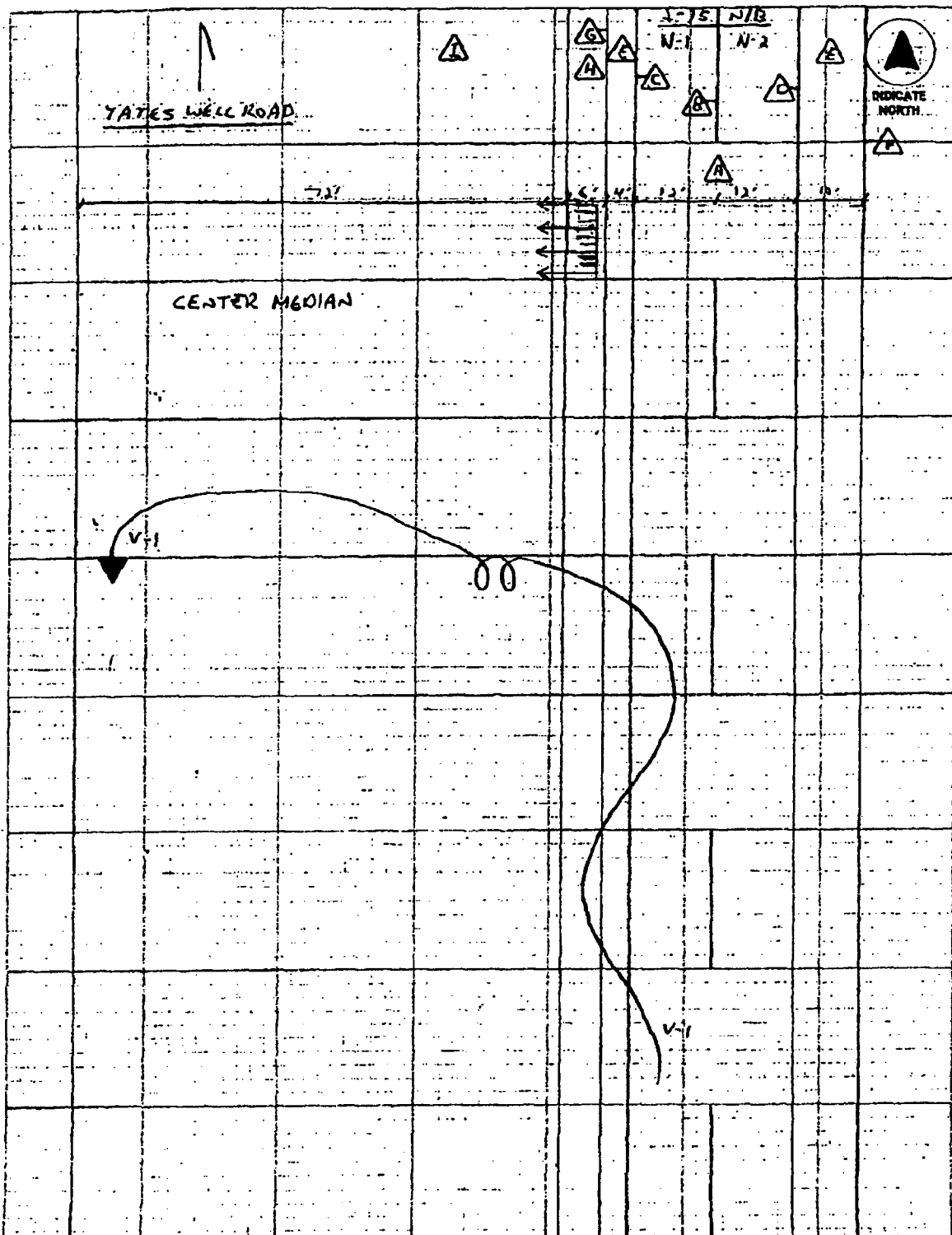
SKETCH

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DATE OF COLLISION (MO. DAY YEAR)	TIME (2400)	NOIC #	OFFICER I.D.	NUMBER
9.20.06	1344	9835	16883	

ALL MEASUREMENTS ARE APPROXIMATE AND NOT TO SCALE UNLESS STATED (SCALE =)



PREPARED BY	LO. NUMBER	MO. DAY YEAR	REVIEWER'S NAME	MO. DAY YEAR
J MORAN	16883	9.24.06		

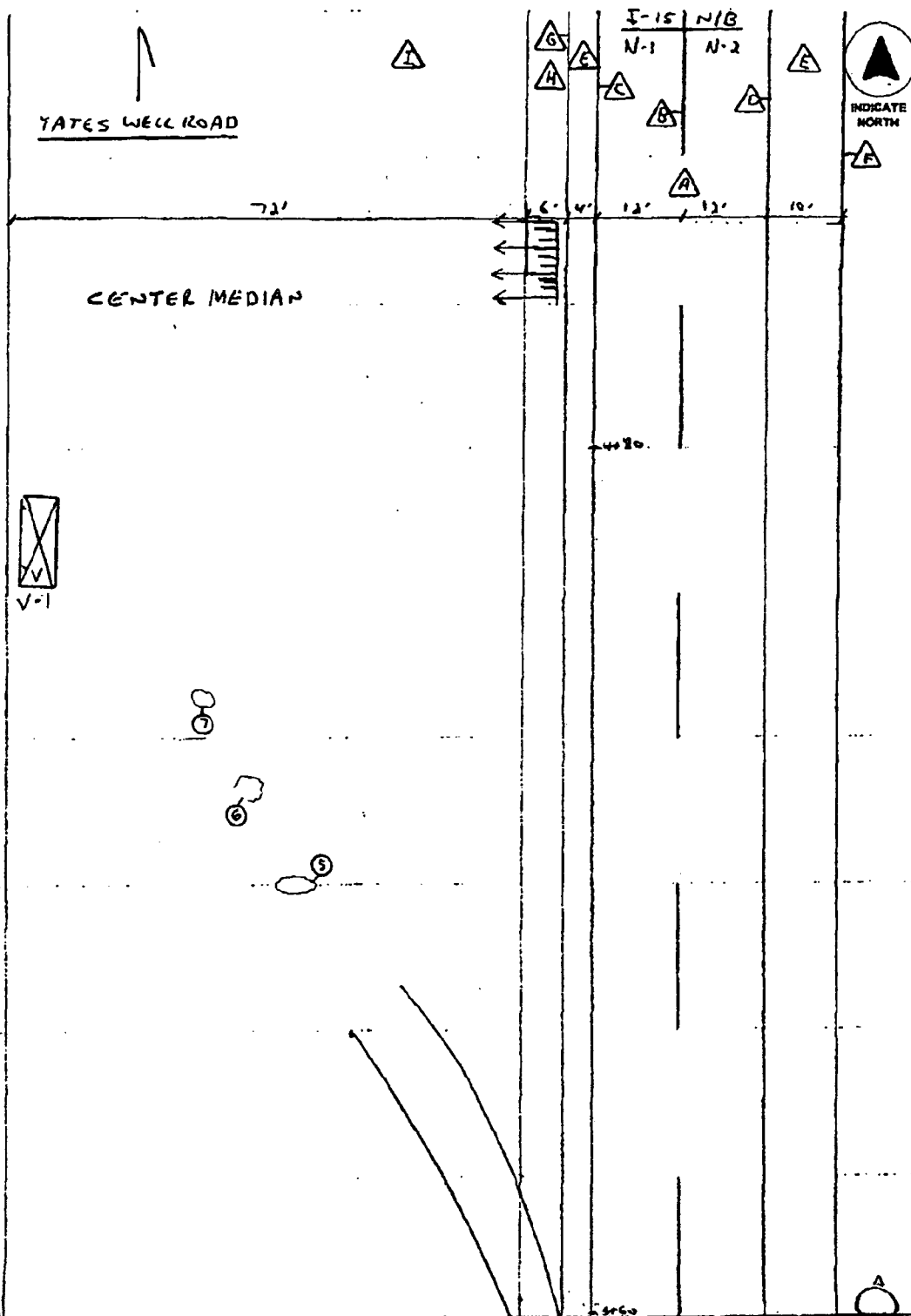
OSP 03 70678

STATE OF CALIFORNIA
FACTUAL DIAGRAM
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DATE OF COLLISION (MO DAY YEAR) 9.20.06	TIME (2400) 1344	NOCC # 9835	OFFICER I.D. 16883	NUMBER
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ALL MEASUREMENTS ARE APPROXIMATE AND NOT TO SCALE UNLESS STATED (SCALE =)



PREPARED BY J MORAN	I.D. NUMBER 16883	MO. DAY YEAR 9.24.06	REVIEWER'S NAME	MO. DAY YEAR
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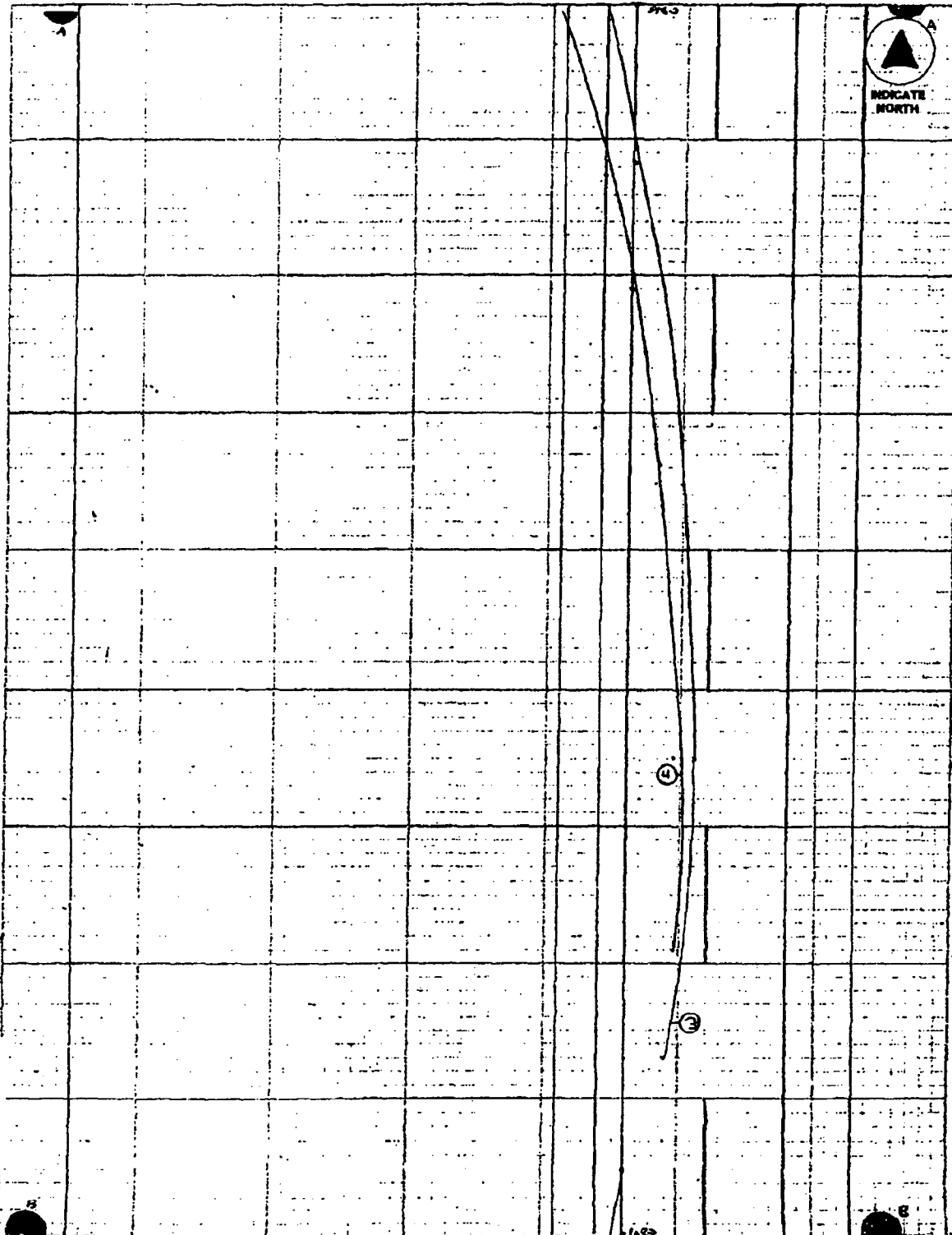
OSP 03 75578

STATE OF CALIFORNIA
FACTUAL DIAGRAM
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9-20-06	1344	9835	16883	

ALL MEASUREMENTS ARE APPROXIMATE AND NOT TO SCALE UNLESS STATED (SCALE =)



PREPARED BY	I.D. NUMBER	MO. DAY YEAR	REVIEWER'S NAME	MO. DAY YEAR
J MORAN	16883	9-24-06		

OPI 08 70578

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NARRATIVE/SUPPLEMENTAL

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1
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9**VEHICLE POINT OF REST**

VEHICLE	STATION	DISTANCE	DESCRIPTION
Vehicle #1	4+64	80'L	Left front tire
	4+74	80'L	Left rear tire

10 **PHYSICAL EVIDENCE**11
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ITEM	STATION	DISTANCE	DESCRIPTION
#1	0+09	4'L	Beginning: Tire Track Mark (TTM)
	0+40	6'L	Cont: TTM
	0+80	8'L	Cont: TTM
	0+86	8'L	Split: TTM
	1+20	8'L	Cont: TTM
	1+66	4'L	Change: TTM to Tire Friction Mark (TFM)
	1+90	AT	End: TFM
#2	0+86	8'L	Split: TTM
	1+20	7'L	Cont: TTM
	1+54	4'L	End: TTM
#3	2+06	6'R	Beginning: TFM
	2+50	10'R	Cont: TFM
	2+90	10'R	Cont: TFM
	3+37	AT	Cont: TFM
	3+55	4'L	Change: TFM to TTM
	3+81	10'L	Cont: TFM
	4+06	27'L	End: TFM

37 **PHYSICAL EVIDENCE**38
39
40
41
42

ITEM	STATION	DISTANCE	DESCRIPTION
#4	2+22	7'R	Beginning: TFM
	2+50	7'R	Cont: TFM

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1	2+90	4'R	Cont:	TFM
2	3+18	AT	Cont:	TFM
3	3+35	4'L	Change:	TFM to TTM
4	3+63	10'L	Cont:	TFM
5	3+99	34'L	End:	TFM
6				
7 #5	4+20	41'L	Center:	Dirt impression mark 3'x3'
8				
9 #6	4+33	48'L	Center:	Dirt impression mark 4'x4'
10				
11 #7	4+46	53'L	Center:	Dirt impression mark 3'x3'
12				
13				

14 **Legend**

15

16 A	Asphalt roadway
17 B	Broken white painted line
18 C	Solid yellow painted line
19 D	Solid white painted line
20 E	Asphalt shoulder
21 F	Raised asphalt curb
22 G	Edge of asphalt
23 H	Gravel sloped shoulder
24 I	Dirt/Brush terrain
25	

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1 Facts

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3 Notification

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5 Officer J. Burke, #15580 received a call of a collision with an ambulance responding at 1346
6 hours. Officer Burke responded from the Mountain Pass Resident Post and arrived on scene at
7 approximately 1356 hours. While responding to this collision, Officer Burke contacted me via his
8 cell phone prior to the start of my shift and requested that I respond to this collision. I responded
9 from the Mountain Pass Resident Post and arrived on scene of a fatal traffic collision at
10 approximately 1406 hours. Sergeant Arnsward, #11974, responded from the Barstow CHP Office
11 and arrived on scene at approximately 1543 hours.

12

13 All times, speeds, and measurements are approximate. Measurements were obtained by
14 rollmeter and odometer.

15

16

17 Scene

18

19 This collision occurred on the I-15 freeway northbound, south of Yates Well Road. I-15 is a
20 designated north-south aligned, asphalt paved, State of California maintained roadway, with full
21 control access, in the unincorporated area of San Bernardino County. Northbound I-15 at this
22 location is generally flat. There are two northbound traffic lanes. The northbound #1 and #2 lanes
23 are separated by painted white stripes and raised ceramic markers. A painted yellow line and an
24 asphalt center median border the northbound #1 lane to the west. A dirt/brush center median
25 borders the asphalt center median to the west. The northbound #2 lane is bordered on the east
26 by a painted white edge line and an asphalt paved shoulder. The asphalt shoulder is bordered on
27 the east by open dirt terrain. The asphalt shoulder is separated from the open dirt terrain by a
28 raised asphalt curb. The open dirt terrain located in the center median consisted of a narrow
29 gravel shoulder followed by a slight downward grade dirt embankment. At the bottom of the
30 embankment, the dirt/brush is generally flat (For more details see factual diagram).

31

32 The weather at the time of this collision was warm, dry, and clear with no visual obstructions.
33 Traffic conditions were light to moderate.

34

35

36 Agencies Involved

37

38 Officer J. Moran #16883
39 Barstow CHP
40 300 E. Mountain View
41 Barstow, Ca 92311
42 (760) 255-8700

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NARRATIVE/SUPPLEMENTAL

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1 Agencies Involved

2

3 Officer J. Burke #15580

4 Barstow CHP

5 300 E. Mountain View

6 Barstow, Ca 92311

7 (760) 255-8700

8

9 Sergeant Arnswald #11974

10 Barstow CHP

11 300 E. Mountain View

12 Barstow, Ca 92311

13 (760) 255-8700

14

15 Capt. W Randall

16 Capt. Anderson

17 Firefighter McCoy

18 San Bernardino County Fire Department

19

20 Paramedic J Welch P50085

21 AMR -Primm, Nevada

22

23 Coroner Supervisor Kroeker

24 Coroner Investigator Schumacher

25 San Bernardino County Coroner Office

26

27

28 Parties

29

30 Party #1 (P-1 [REDACTED]) was located at the collision scene, deceased, seat belted, in the driver's
 31 seat of Vehicle #1 (V-1 [REDACTED]) upon my arrival. Party #1 was seated upside down with his left
 32 shoulder and arm protruding from the shattered left front window. Party #1 was identified by his
 33 valid Oregon driver's license and United States Passport. Party #1 was determined to be the
 34 driver of Vehicle #1 due to Party #1's seat position, Party #1 was the only occupant in the vehicle
 35 at the time of this collision and Party #1 was listed as the customer on the rental agreement.

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1 Parties

2

3 Vehicle #1 (Chevrolet Cobalt) was located at the collision scene on its roof facing in a southerly
4 direction in the dirt/brush center median of I-15 (at its point of rest). Vehicle #1 sustained major
5 damage consistent with a rollover traffic collision to include the following:

6

7 The windshield was shattered. The right rear quarter panel was dented in the vicinity of the gas
8 door. The right side mirror was separated from the vehicle. The right front window was shattered.
9 There were minor scrapes and dents along the entire right side. The right portion of the grille was
10 separated from the vehicle. The grille consisted of three separate sections. The left side mirror
11 was separated from the vehicle. The left door was dented and scraped. The left rear quarter
12 panel was dented, scraped and crushed inward towards the trunk. The left outer portion of the
13 trunk was dented and scraped. Both of the right hubcaps were scraped and cracked. Both of the
14 left side windows were shattered. The rear window was shattered. The left rear corner was
15 dented and crushed inward towards the trunk. The roof was dented and scraped. The roof was
16 caved inward on the driver's side. The left side "A", "B" and "C" pillars were crushed inward
17 towards the center of the vehicle. The hood was dented and scraped. The cross bar that runs
18 between the rear tires was bent towards the right side.

19

20 Both of the right side tires were flat due to the seal being broken around the bead. I attempted to
21 check and see if the tires contained any air pressure after the collision and both tires would not
22 register any tire pressure using a standard tire pressure gauge. The tread was excellent and
23 showed no signs of being driven while the tire was flat. Both of the left side tires were inflated and
24 the tread was excellent. The left front tire contained 35 pounds of pressure and the left rear tire
25 contained 34 pounds of pressure. All four tires were Continental Touring Contact AS, size:
26 P195/60R15. The left rear tire had a DOT number, CPV9BLC1506. The remaining three tires
27 had the same DOT number, CPV9BLC1806. The vehicle was registered to Alamo Financing and
28 showed that the vehicle was rented to Party #1 at 0948 hours on 09/20/2006 at Ontario Airport. I
29 located an Emerald Club checkout card in the vehicle which showed an odometer reading of 230
30 miles at checkout. No prior mechanical defects or damage was noted.

31

32 An inspection of the driver's seatbelt was conducted at the collision scene, prior to Vehicle #1
33 being up-righted and Party #1 being removed from the vehicle. I gained access through the open
34 driver's door. Upon initial inspection, I observed Party #1 seated in Vehicle #1 upside down being
35 held in place by the driver's seatbelt. The clip portion of the seatbelt was securely fastened into
36 the receiver portion. The lower strap of the seatbelt crossed over Party #1's waist area and the
37 horizontal portion ran from the left shoulder position of Party #1 to the receiver. The upper portion
38 runs through a plastic guard which is attached to the upper outer portion of the driver's seat. The
39 seatbelt was then cut by Firefighter McCoy at the direction of Coroner Supervisor Kroeker. A
40 second inspection was conducted at the scene once Vehicle #1 was up righted and Party #1 was
41 removed from the vehicle. An inspection of the webbing showed fraying in the vicinity of the
42 portion that was in contact with the plastic guard. The webbing showed waves

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1 Parties

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3 which is consisted with signs of loading at the time of a collision. The metal clip was removed
4 from the receiver and showed markings on the clip portion. I determined that the driver's seatbelt
5 was in use at the time of this collision.

8 Statements

9
10 **Party #1 (P-1)** No statement was obtained due to his fatal injuries.

13 Physical Evidence

14
15 3 rolls of 35 MM film consisting of:
16 2-24 exposure rolls and 1-12 exposure roll.

19 Opinions and Conclusions**21 Summary Based on physical evidence and vehicle damage.**

22
23 Party #1 was driving vehicle #1 (Chevrolet) northbound on I-15, in the #1 lane, at an
24 undetermined speed, south of Yates Well Road. For unknown reasons, Party #1 allowed V-1 to
25 travel into the gravel portion of the center median. Party #1 turned vehicle #1 to the right and
26 applied vehicle #1's brakes. Vehicle #1 traveled into the #1 lane where Party #1 turned Vehicle
27 #1 to the left causing Vehicle #1 to travel into the center median where Vehicle #1 overturned by
28 way of its right side. Party #1 who was wearing a seatbelt succumbed to his injuries at the scene
29 of this collision. Vehicle #1 came to rest on its roof on the dirt/brush center median of I-15, facing
30 in a southerly direction.

33 Area of Impact (AOI) Based on physical evidence and vehicle damage.

34
35 AOI #1 (V-1 vs. overturning) was determined to be 41' left of station 4+20.

37 Cause Based on physical evidence and statements.

38
39 The primary collision factor in this collision is Party #1's violation of 22107 VC (Unsafe turning
40 movement).

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1 Recommendations

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3 None.

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